

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Curmi	Team: Team # 5	CCRB Case #: 201100512	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/13/2011 6:20 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/13/2012	Precinct: 88		
Date/Time CV Reported Thu, 01/13/2011 7:20 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 01/13/2011 7:20 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Raymond Tomins	05336	902480	WARRSEC
2. Officers			WARRSEC
3. An officer			WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . SGT Raymond Tomins	Abuse: SGT Raymond Tomins supervised the entry of § 87(2)(b) in Brooklyn.	A . Complainant Uncooperative
B . An officer	Abuse: An officer threatened to arrest § 87(2)(b)	B . Complainant Uncooperative
C . An officer	Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)	C . Complainant Uncooperative
D . Officers	Abuse: Officers refused to provide his/her name and/or shield number to § 87(2)(b)	D . Complainant Uncooperative

Case Summary

On January 13, 2011, § 87(2)(b) filed the following complaint at the CCRB via the Call Processing System.

On January 13, 2011, at approximately 6:20 a.m., § 87(2)(b) heard knocking at her door. When she asked who was there, an unidentified male answered, “building inspectors.” Fearful, § 87(2)(b) went and woke her son, § 87(2)(b) who stood inside of his room. § 87(2)(b) went back to the door and asked to see a badge, she looked through her peep-hole and saw a police officer’s badge. § 87(2)(b) opened the door and four officers entered her apartment. They were looking for § 87(2)(b). § 87(2)(b) informed them that he was incarcerated. She became upset and § 87(2)(b) entered the living room and asked the officers why they were scaring his mother. An unidentified officer then called § 87(2)(b) a dick and stated, “Oh, doesn’t he look like the perp? We should just arrest him.” § 87(2)(b) began to cry and stated, “Why would you arrest him? He does not look like § 87(2)(b).” § 87(2)(b) left the living room in an attempt to call her daughter on her cellular phone. The unidentified male officer followed her and asked why she was using her phone. They went back to the living room and after some time the officers left. § 87(2)(b) and § 87(2)(b) asked for their badge numbers and names and one turned and stated, “Tomis, badge number 5336.” The other officers did not provide their information.

§ 87(2)(b) and § 87(2)(b) also provided the name, Tomis, and badge number, 5336. They described this officer as a 32 year old, heavysset white male officer in plainclothes, § 87(2)(b) was unable to provide a description of his clothing. § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) described the Subject Officer of the discourtesy and threat of arrest as a young white male wearing a grey skull cap. They were unable to provide any further information. § 87(2)(g) The remaining two officers were both described as white male officers in plain clothes approximately 32 years of age. § 87(2)(b) was unable to provide any further description. § 87(2)(g)

Between January 18, 2011, and February 2, 2011, five calls were made and 2 letters sent to § 87(2)(b) and § 87(2)(b). On January 18, 2011, a call was made to § 87(2)(b) she provided a statement and accepted mediation. On January 26, 2011, a third call was made to § 87(2)(b). He provided a statement and also accepted mediation. Because the officers were unidentified in the case, an attempt to schedule an appointment to provide a sworn statement was made. However, § 87(2)(b) informed the undersigned investigator that because of his busy work schedule he was uncertain when he would be able to provide one. Supervision was consulted and it was decided that in lieu of both § 87(2)(b) and § 87(2)(b) providing statements, it would be acceptable to take a statement from either complainant. On January 26, 2011, a call was made to § 87(2)(b) and he was told that his mother would be contacted to set up an appointment. That same day, § 87(2)(b) was called and she indicated that she was ill and agreed to speak to § 87(2)(b) to work out a time that one of them could come in to provide a statement. On January 28, 2011, both § 87(2)(b) and § 87(2)(b) were called. § 87(2)(b) indicated that they had not yet decided who would come to the CCRB to provide a statement but agreed to call the undersigned investigator January 31, 2011, at 9:00 a.m. to schedule an appointment. Neither § 87(2)(b)

§ 87(2)(b) nor § 87(2)(b) called at the agreed upon time. On February 2, 2011, a fifth call was made to § 87(2)(b) but she did not answer so a message was left on her answering machine informing her that if the undersigned investigator did not hear back from her or § 87(2)(b) by Friday February 4, 2011, that the case may be closed without a full investigation. On that day, a fifth call was also made to § 87(2)(b) but an error code greeted the undersigned investigator. As of February 7, 2011, neither § 87(2)(b) nor § 87(2)(b) have called to schedule an appointment to provide a sworn statement. § 87(2)(g)

it is recommended that the allegations in this case be closed as **complainant uncooperative.**

Team: 5

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Investigator:	<u>Christopher Curmi</u>	<u>2/7/11</u>
	Signature	Date

Supervisor:		
	Title/Signature	Print
		Date

Reviewer:		
	Title/Signature	Print
		Date

Reviewer:		
	Title/Signature	Print
		Date